

C.C.R.B CASE CLOSING FORM

Investigator assigned: Peter Davies		Team: 3	CCRB#: 9801593	☒ Force ☐ Discourtesy ☐ Abuse ☐ O.L. ☐ Injury
Date of incident: 3/30/98	Time of incident: 3:10 PM	Location of incident: 141st Street and Hamilton Avenue, Manhattan	Pct. of occurrence: 030	Date S.O.L. Expires: 9/30/99
Date reported: 4/7/98	Time reported: 11:30 AM	To whom/where/how reported: Complaint forwarded from 30th precinct		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s): same		Home address:		
Witness(es):		Home address:		
Subject officer(s) (include rank): Sgt. Enrique Calderin PO Roger Coleman PO Ronald Luparello		Shield: 1650 12292 27134	Tax: 882325 915466 916088	Command: 030 030 030
Witness officer(s) (include rank): PO Christina Valarezo		Shield: 18824	Tax: 916830	Command: 030
Allegation(s) by letter: A) Excessive Force: Sgt. Enrique Calderin bumped into Mr. § 87(2)(b) in violation of Patrol Guide procedure 104-01. B) Excessive Force: Sgt. Calderin threw Mr. § 87(2)(b) over the trunk of a parked car, in violation of Patrol Guide procedure 104-01. C) Excessive Force: PO Roger Coleman threw Mr. § 87(2)(b) over the trunk of a parked car, in violation of Patrol Guide procedure 104-01. D) Excessive Force: PO Ronald Luparello threw Mr. § 87(2)(b) over the seats of the prisoner van, in violation of Patrol Guide procedure 104-01.				Recommendation(s): Unsubstantiated Exonerated Exonerated Unfounded

Summary of Complaint

On March 30, 1998, § 87(2)(b) left his § 87(2)(b) home at 3:00 p.m. and walked down 141st street. When he reached the intersection of 141st and Hamilton Place, Mr. § 87(2)(b) noticed a police checkpoint. Because he had extra time before his 4:00 p.m. appointment, Mr. § 87(2)(b) decided to observe the police activity. § 87(2)(b) Mr. § 87(2)(b) regularly participates in monitoring police activity and conduct. There were several other neighborhood residents, primarily elderly, also watching

the events. Mr. § 87(2)(b) estimates there were about 9 MOS present, with at least one RMP and one police van. Mr. § 87(2)(b) took out pen and paper from his briefcase and began noting down information about the cars and drivers that the officers chose to stop. At 3:40 p.m., Sgt. Calderin approached Mr. § 87(2)(b) and said, "Hello sir, What are you doing here?" Mr. § 87(2)(b) responded, "I'm watching." Sgt. Calderin said, "You can't watch. Move it out of here. Get moving." Mr. § 87(2)(b) who still had his pen and paper out, said, "What do you mean, I can't watch?" Sgt. Calderin moved in front of Mr. § 87(2)(b) and repeated his order to move. Mr. § 87(2)(b) said, "There's no law saying I can't stand here and watch. And there are two women standing no more than five feet from me doing the exact same thing." Mr. § 87(2)(b) then started to walk away to his right—after only two steps, Sgt. Calderin moved around and stood in front of him again. They were chest to chest at this point. Sgt. Calderin said, "I told you to get out of here." Mr. § 87(2)(b) said, "I'm going to 125th street so I'll go this way." Mr. § 87(2)(b) turned so that he could go diagonally across the street in the direction of 142nd st. Sgt. Calderin jumped in front of Mr. § 87(2)(b) and bumped the left side of Mr. § 87(2)(b) body with his shoulder and chest. (Allegation A) Mr. § 87(2)(b) said, "excuse me, I'm trying to go this way." Mr. § 87(2)(b) tried to move around him but Sgt. Calderin blocked him with his elbow/shoulder and then yelled out, "He assaulted a police officer." Suddenly a number of officers surrounded Mr. § 87(2)(b) and he was thrown over the trunk of a car. (Allegation B and C) He does not know if Sgt. Calderin grabbed him before the other officers reached them. His glasses fell off (without which his vision is limited) and he was quickly handcuffed. Mr. § 87(2)(b) says he did not offer any resistance. He bookbag was still in the crook of his arm and he was still holding onto his pen. He heard one officer say, "He's a big one, ain't he. Let's double cuff him." Once the second set of cuffs was applied, Mr. § 87(2)(b) was "hustled" over to a police van. He was thrown into the third seat. An officer said, "You can't sit in the third seat, you've got to get into the fourth seat." Mr. § 87(2)(b) was bewildered and did not understand what the officers were asking him. Officers then picked him up and threw him over the third seat into the fourth seat. (Allegation D) His left shoulder hit the seat and his ankle was twisted. Mr. § 87(2)(b) said nothing to the officers during his removal to the van.

Mr. § 87(2)(b) was left in the van for nearly two hours. At one point, a female bystander knocked on the window and asked if he had received his glasses, which were lost during the struggle. Around 4:15 or so, he started to feel very hot and a little dizzy. Mr. § 87(2)(b) has a heart condition and was conscious of the warning signs presaging a heart attack. He asked for medical attention several times. At around § 87(2)(b), he was taken to the § 87(2)(b). As he was being escorted inside, his glasses fell out of his left pocket. One of the escorting officers said, "Ah, Mr. § 87(2)(b) you had your glasses after all." Several doctors were concerned with the EKG results and wanted Mr. § 87(2)(b) to sign himself in for further observation. Mr. § 87(2)(b) however, did not want to be handcuffed during his stay in the hospital. At this point, he believed that he was being charged with assaulting a police officer. He decided he would rather be taken to the stationhouse and deal with the charges against him.

The following day, after being released and going home, Mr. § 87(2)(b) began to walk his usual route to work down 141st street. Right before the corner of Convent avenue, he saw a police van parked but did not think anything of it. A few minutes later, the police van pulled up in front of him. Sgt. Calderin was driving, accompanied by a young PO. Sgt. Calderin leaned over and said, "Mr. § 87(2)(b) how are you today?" Mr. § 87(2)(b) said, "I don't know why you're harassing me but I was told by my lawyer to go right down to the precinct the next time you said a word to me." Mr. § 87(2)(b) did just that. When he got to the 30th, Sgt. Calderin was already there. The Sgt. said, in a booming voice, "Hey Mr. § 87(2)(b) how you feeling? OK?" Mr. § 87(2)(b) did not say anything. Mr. § 87(2)(b) "vented" his experiences to Insp. Nash,

who promised to speak to Sgt. Calderin. Insp. Nash also encouraged Mr. § 87(2)(b) to file a complaint. On the next day (April 2) Mr. § 87(2)(b) came back to the 30th and filed a complaint about the second incident with Sgt. Calderin. A few days later (on either April 6 or April 7), he returned to file a complaint about the first incident. The charges § 87(2)(a) 160.50 against Mr. § 87(2)(b) were dismissed § 87(2)(b).

Results of Investigation

Mr. § 87(2)(b) claimed to have the name of a witness to the incident but was unwilling to provide it to CCRB until his criminal case was concluded. He did not respond to subsequent requests for this information. (encl. 18a)

According to Sgt. Enrique Calderin, his team was conducting a safety checkpoint at 141st and Hamilton Place in Manhattan. They were stopping every car that came south on Hamilton Place and west on 141st street. The checkpoint began at 2:30 p.m. and shortly thereafter, Sgt. Calderin noticed a man standing on the northwest corner of the intersection. About 45 minutes later, Sgt. Calderin noticed that this man was getting closer (about five feet) to the officers who were conducting the stops. Because the proximity of this man to the officers concerned him, Sgt. Calderin approached the man. He said, "may I help you sir?" The man, later identified as § 87(2)(b), said, "No, I don't need any help. I'm here to watch you. You're violating people's rights here." Mr. § 87(2)(b) accused them of just stopping blacks and Latinos. Sgt. Calderin noticed that Mr. § 87(2)(b) had been writing down the race of the people who were stopped. Sgt. Calderin explained that community groups had requested this checkpoint to stem the local drug trade. Mr. § 87(2)(b) said that the cops were all "Nazis and devils" and that he had a right to stand there observing. Sgt. Calderin said he had no problem with Mr. § 87(2)(b) observing the checkpoint as long as he moved to the southwest corner of the intersection and stayed out of the officers' way. Mr. § 87(2)(b) refused to move or to identify himself. Sgt. Calderin said that if Mr. § 87(2)(b) refused to move from the corner he could be arrested for interfering with the safety checkpoint. After discussing this point a little longer, Mr. § 87(2)(b) angrily agreed to leave. Mr. § 87(2)(b) was standing perpendicular to Sgt. Calderin and when he walked past the sergeant, Mr. § 87(2)(b) lowered his right shoulder and pushed him in the chest. Sgt. Calderin told Mr. § 87(2)(b) that he was under arrest and grabbed his right arm and put it behind his back. Mr. § 87(2)(b) fought back, so Sgt. Calderin pushed him against a parked car to get him off balance. Mr. § 87(2)(b) held his left arm against his chest. Several other officers came over to assist and Mr. § 87(2)(b) was handcuffed and placed in a patrol van. During the struggle, Mr. § 87(2)(b) glasses fell off and Sgt. Calderin picked them up and gave them back to him later in the van. Sgt. Calderin was concerned that Mr. § 87(2)(b) might be mentally ill. A few minutes later, Mr. § 87(2)(b) complained of chest pains so Sgt. Calderin ordered PO Vallarezo (the arresting officer) and another officer to take him to § 87(2)(b). Sgt. Calderin then called off the checkpoint and went to the hospital himself. He talked to Mr. § 87(2)(b) and gave him his name, shield number, and command. A doctor told Sgt. Calderin that there was nothing wrong with Mr. § 87(2)(b) and released him. Mr. § 87(2)(b) was taken back to the 30th precinct for processing.

Sgt. Calderin had never encountered Mr. § 87(2)(b) before this incident. He does recall seeing Mr. § 87(2)(b) a few days after the incident, once during a traffic stop (he says they did not exchange words) and then when Mr. § 87(2)(b) came to the precinct to file his complaint. In addition, on June 29, 1998, Sgt. Calderin was conducting a car stop at West 142 and Broadway. While he was running the drivers' license through the computer, Mr. § 87(2)(b) came upon the scene and approached the car. Sgt. Calderin overheard Mr.

§ 87(2)(b) telling the occupants that the police had no authority to stop them and that they should drive away. Sgt. Calderin approached Mr. § 87(2)(b) and warned him of the consequences of interfering with a police action. He told Mr. § 87(2)(b) that he would be arrested if he did not leave immediately. Mr. § 87(2)(b) said, "Yes, I'll leave. I'll take it up with my lawyer." He then left the scene.

PO Roger Coleman did not know Mr. § 87(2)(b) by name at the time but recognized him as someone who frequently observes police activity at checkpoints. A while later, PO Coleman noticed that Mr. § 87(2)(b) was moving closer to the officers who were stopping cars. Sgt. Calderin went up to Mr. § 87(2)(b) and began speaking to him. PO Coleman could not hear everything that was said but noted that the discussion got increasingly louder. Sgt. Calderin was asking Mr. § 87(2)(b) to stand on the other corner. PO Coleman approached them and the discussion or argument appeared to be concluding. Sgt. Calderin said, "Ok fine," and then Mr. § 87(2)(b) said, in a huffy manner, "Ok fine." Mr. § 87(2)(b) and Sgt. Calderin were standing a few feet apart. Mr. § 87(2)(b) then turned and began to walk past Sgt. Calderin—as he was doing this, Mr. § 87(2)(b) stuck out his right forearm and struck Sgt. Calderin in the chest. Sgt. Calderin had not moved or in any way impeded Mr. § 87(2)(b). PO Coleman says he had a clear view of this blow. Immediately thereafter, Sgt. Calderin said "he's under arrest" and grabbed Mr. § 87(2)(b) by the upper right arm. PO Coleman was the first officer to assist Sgt. Calderin. Mr. § 87(2)(b) was near the trunk of a parked car—the officers leaned him over the trunk and Mr. § 87(2)(b) locked his hands in front of his body. Sgt. Calderin, PO Coleman and other officers tried to pull out Mr. § 87(2)(b) hands to get him cuffed. He resisted them for a while but the officers were able to eventually get him handcuffed. Mr. § 87(2)(b) was then placed in a patrol van by other officers.

PO Ronald Luparello heard a commotion coming from the northeast corner of the intersection. When he turned around, he saw Sgt. Calderin "wrestling" with a man later identified as § 87(2)(b). PO Luparello had noticed Mr. § 87(2)(b) at the checkpoint before this point—he was walking up to cars and writing down information. PO Luparello walked across Hamilton and joined other officers in assisting Sgt. Calderin. Mr. § 87(2)(b) was leaned over a parked car and was holding his arms across his chest. He refused to cooperate with efforts to pull him off the car or to get his hands free. PO Luparello recalls grabbing Mr. § 87(2)(b) left hand and cuffing it. Meanwhile, another officer had cuffed the right hand. After Mr. § 87(2)(b) was handcuffed, he was taken across the street to a patrol van by PO Luparello and other officers. Mr. § 87(2)(b) was still struggling against the officers when they placed him in the van. When Mr. § 87(2)(b) sat down in the middle seat of the van, PO Luparello asked Mr. § 87(2)(b) to move back to the rear seat. Mr. § 87(2)(b) stood up to move back and his glasses fell off. An officer picked up the glasses and put them in Mr. § 87(2)(b) jacket pocket. A few minutes later, Mr. § 87(2)(b) complained that his glasses had been taken from him. An officer pointed out to him that his glasses were in his pocket. A short while later, PO Luparello drove the van, with PO Christina Valarezo, the arresting officer, accompanying him to the hospital. Two months before this incident, PO Luparello was performing a car stop on Amsterdam Avenue near CCNY. Mr. § 87(2)(b) came up to the civilians and began yelling that the officers had no right to stop them. PO Luparello wondered at the time if Mr. § 87(2)(b) was emotionally disturbed.

According to PO Valarezo, she was sitting in an RMP on the west side of 141st street, when she heard a commotion behind her—she turned and saw Mr. § 87(2)(b) being handcuffed. He was waving his arms and refusing to cooperate. PO Valarezo got out of the RMP and ran over to the corner but by the time she got there, Mr. § 87(2)(b) was already under control. Sgt. Calderin told PO Valarezo that she was going to be the

arresting officer. He also told her that Mr. § 87(2)(b) had hit or pushed him. When Mr. § 87(2)(b) complained of chest pains, PO Valarezo rode in the van when they escorted him to the hospital.

Conclusions and Recommendations

Mr. § 87(2)(b) describes himself as a § 87(2)(b) well-known in the 30th precinct. As noted above, most of the officers interviewed have had other encounters with him. § 87(2)(g)

[REDACTED]

Allegation A: Sgt. Enrique Calderin bumped into Mr. § 87(2)(b)

§ 87(2)(g) As both parties attest to, they exchanged a number of words before one of them bumped into the other. § 87(2)(g)

[REDACTED]

The allegation should be **unsubstantiated**.

Allegation B: Sgt. Calderin threw Mr. § 87(2)(b) over the trunk of a parked car.

Allegation C: PO Coleman threw Mr. § 87(2)(b) over the trunk of a parked car.

While Mr. § 87(2)(b) was not able to clearly recollect who handcuffed him, the officers named above stated that they were the first to grab hold of him. They both say that Mr. § 87(2)(b) leaned himself over the car and attempted to lock his arms under his body, thereby delaying the handcuffing. § 87(2)(g)

[REDACTED]

This allegation should be **exonerated**.

Allegation D: PO Ronald Luparello threw Mr. § 87(2)(b) over the seats of the prisoner van.

Again, Mr. § 87(2)(b) was not able to name the officer responsible for this. PO Luparello, however, says he asked Mr. § 87(2)(b) to move to the rear seat, which Mr. § 87(2)(b) did voluntarily. § 87(2)(g)

[REDACTED]

This allegation should be **unfounded**.

Investigator: *John J. Tave* Date: *11.9.98*
Supervisor: *Richard A. Conn* Date: *11.9.98*
Reviewed by: _____ Date: _____
Reviewed by: _____ Date: _____